

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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VICTOR RODRIGUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, UNDERCOVER OFFICER
0022, NYPD DETECTIVE HECTOR J. RODRIGUEZ,
Shield No. 5980, NYPD LIEUTENANT "JOHN" BURNS
(first name being fictitious and presently unknown to
Plaintiff), and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 9, 2024

Yours, etc.

Rachel Black

RACHEL BLACK
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New
York 10007

NYPD DETECTIVE HECTOR J. RODRIGUEZ, Shield No. 5980, Organized Crime Drug Enforcement Strike Force; 1 Police Plaza, New York, New York 10038

UNDERCOVER OFFICER 0022; 1 Police Plaza, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

VICTOR RODRIGUEZ,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, UNDERCOVER OFFICER
0022, NYPD DETECTIVE HECTOR J. RODRIGUEZ,
Shield No. 5980, NYPD LIEUTENANT "JOHN" BURNS
(first name being fictitious and presently unknown to
Plaintiff), and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, VICTOR RODRIGUEZ, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 29, 2011, Plaintiff, while lawfully at or in the vicinity of Tillary Street in the vicinity of the Brooklyn Bridge, County of Kings, New York, was subject to an unlawful arrest, detention, and excessive use of force by the defendant officers. As a result, Plaintiff was subjected to approximately one (1) year in unlawful custody. All charges against the plaintiff were dismissed and sealed on or about May 25, 2021, after the Kings County District Attorney's Office engaged in a review of Plaintiff's conviction. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, subjected to excessive force, passed along false accusations to prosecuting attorneys, and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, VICTOR RODRIGUEZ, is a resident of the state of New York.

3. NYPD DETECTIVE HECTOR J. RODRIGUEZ, Shield No. 5980, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. At all times relevant herein, NYPD DETECTIVE HECTOR J. RODRIGUEZ, Shield No. 5980 was assigned to the Narcotics Borough Brooklyn South.

5. NYPD DETECTIVE HECTOR J. RODRIGUEZ, Shield No. 5980, is being sued in their individual and official capacity.

6. UNDERCOVER OFFICER 0022 was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. At all times relevant herein, UNDERCOVER OFFICER 0022 was, upon information and belief, assigned to the Narcotics Borough Brooklyn South.

8. UNDERCOVER OFFICER 0022 is being sued in their individual and official capacity.

9. NYPD LIEUTENANT "JOHN" BURNS was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

10. At all times relevant herein, NYPD LIEUTENANT "JOHN" BURNS was assigned to the Narcotics Borough Brooklyn South.

11. NYPD LIEUTENANT "JOHN" BURNS is being sued in their individual and official capacity.

12. New York City Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On April 29, 2011, Plaintiff was lawfully present at or in the vicinity Tillary Street, at or in the vicinity of the Brooklyn Bridge, County of Kings, New York, when the defendant officers unlawfully arrested Plaintiff absent probable cause or legal justification.

19. Plaintiff was present at the referenced place and time in violation of no law, ordinance, statute, regulation, or lawful order.

20. Despite having no warrants, having committed no crime, and provided no justification for it, the defendant officers descended upon him and placed Plaintiff under arrest.

21. Plaintiff was restrained with unduly tight metal handcuffs causing pain and discomfort.

22. Plaintiff was subjected to unlawful pat-down search.

23. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective basis to accuse Plaintiff of committing a crime or violating the law in any way.

24. At no point did the defendant officers recover any weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

25. Plaintiff did not resist arrest.

26. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause.

27. Plaintiff was placed in the back of an NYPD vehicle and transported against his will to a local precinct, where he was unlawfully fingerprinted, photographed, and placed in a holding cell.

28. Eventually, Plaintiff was transported to Kings County Central Booking, where he was again unlawfully fingerprinted, photographed, and placed in a holding cell.

29. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed crimes.

30. Specifically, the defendant police officers falsely alleged that Plaintiff was engaged in criminal sale of a controlled substance (PL § 220.39).

31. Thereafter, Plaintiff was arraigned in Kings County Criminal Court, charged with crimes he did not commit.

32. Based on the officers' false representations, bail was set, which Plaintiff was unable to afford.

33. Although Plaintiff was innocent, his public defender advised him that nobody would believe his word over that of the police, and that his choices were: a significant sentence, or a more favorable plea offer.

34. Plaintiff accepted the advice of counsel, reluctantly agreeing and pleading guilty.

35. Plaintiff was thereafter sentenced, and served approximately one (1) year at Rikers Island Correctional Facility.

36. In 2021, the Kings County District Attorney's Office re-investigated Plaintiff's conviction following questions of its integrity.

37. Thus, the Kings County District Attorney's Office vacated Plaintiff's conviction on or about May 25, 2021, and the false charges against him were dismissed and sealed in their entirety.

38. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

39. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION**Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty**

40. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

41. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION**False Arrest/False Imprisonment**

43. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

THIRD CAUSE OF ACTION**Violation of Fourth and Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process**

49. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

50. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

51. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

52. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

53. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

54. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION**42 U.S.C. § 1983 and New York State Law
Malicious Prosecution**

58. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

59. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

60. Defendants commenced and continued a criminal proceeding against Plaintiff in the complete absence of probable cause.

61. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

62. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

FIFTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

63. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

64. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

65. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

66. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately one (1) year in total.

67. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

68. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

69. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

70. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

71. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

72. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

73. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SEVENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

74. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

75. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

76. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

77. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

78. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

79. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately one (1) year in total.

80. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

81. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

83. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

84. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

85. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

86. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

87. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

88. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

89. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

90. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

91. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

92. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

93. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

94. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, VICTOR RODRIGUEZ, demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
April 9, 2024

By: *Rachel Black*

RACHEL BLACK

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza, 15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD DETECTIVE HECTOR J. RODRIGUEZ, Shield No. 5980, Organized Crime Drug Enforcement Strike Force; 1 Police Plaza, New York, New York 10038

UNDERCOVER OFFICER 0022; 1 Police Plaza, New York 10038

ATTORNEY'S VERIFICATION

RACHEL BLACK, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
 April 9, 2024

Rachel Black
RACHEL BLACK